

26VECV02112 26VECV02112

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-09-04

Motion: DEMURRER WITH MOTION TO STRIKE TO COMPLAINT

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Case Number: 26VECV02112 Hearing Date: September 4, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

ANDREW

ROGANSON,

Plaintiff,

vs.

HESAM MOAZZAMI, an individual, et al.

Defendants.

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CASE

NO: 26VECV02112

[TENTATIVE]

ORDER RE: DEMURRER WITH MOTION TO STRIKE TO COMPLAINT

Dept.

I

HEARING

DATE: September 4, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: April 9, 2026

TRIAL

DATE: None set

I.

BACKGROUND

This is a quiet title action arising out of a dispute concerning the boundary line between Plaintiff Andrew Roganson's ("Plaintiff") property located at 22522 Burbank Blvd., Woodland Hills, CA 91367 (the "Subject Property") and Defendants' Hesam Moazzami ("Moazzami") and Siva Farahani ("Farahani") property located at 22518 Burbank Blvd., Woodland Hills, CA 91367 (the "Adjacent Property"), including Plaintiff's interest in a strip of land along the boundary line. On April 9, 2026, Plaintiff filed a Complaint against Defendants Moazzami, Farahani, All Persons Unknown, and DOES 1 through 20 (collectively, "Defendants"), alleging causes of action for: (1) Quiet Title; (2) Declaratory Relief – Prescriptive Easement; (3) Trespass to Real Property; and (4) Nuisance.

On May 11, 2026, Moazzami filed an Answer to the Complaint.

On July 14, 2026, Farahani filed the instant Demurrer and Motion to Strike the Complaint. On August 24, 2026, Plaintiff filed an Opposition. On August 28, 2026, Farahani filed a Reply.

II.

LEGAL

STANDARD

Demurrer

"The primary function of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.)

"A demurrer tests

the legal sufficiency of the factual allegations in a complaint." (Ivanoff v. Bank of America, N.A. (2017) 9 Cal.App.5th 719, 725.) The Court looks to whether "the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (Id.) The Court does not "read passages from a complaint in isolation; in reviewing a ruling on a demurrer, we read the complaint 'as a whole and its parts in their context.' [Citation.]" (West v.

JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 804.) The Court “assume[s] the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (Harris, supra, 56 Cal.4th p. 240.) “The court does not, however, assume the truth of contentions, deductions, or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

A

general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers. Special demurrers are not allowed in limited jurisdiction courts. (Code Civ. Proc., § 92, subd. (c).)

A

demurrer for uncertainty means the pleading is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.) “[D]emurrers for uncertainty are disfavored and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.)

Leave

to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)

Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(1).) 22

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a); see also *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)¿

The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)¿¿

III.

DISCUSSION

Meet and Confer

Prior to filing a demurrer and motion to strike, the demurring/moving party is required to meet and confer in person, by telephone, or by videoconference with the party who filed the pleading for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer and motion to strike. (Code Civ. Proc., § 430.41; Code Civ. Proc., § 435.5.)¿¿

Farahani

counsel of record, Darlene P. Hernandez, attests to the following meet and confer efforts: “I attempted to meet and confer with Plaintiff, ANDREW ROGANSON, in pro per. on June 12, 2026, by email correspondence concerning Defendant’s intended demurrer and motion to strike to Plaintiff’s Complaint. The parties were unable to resolve the issues, resulting in the need to file the instant demurrer and motion to strike.” (Hernandez Dem. Decl., ¶2, Ex. 1.) Specifically, Ms. Hernandez sent Plaintiff an email stating: “Would you agree to extending the deadline to respond to the Complaint to July 6, 2026? We would

also like to schedule a time next week to meet and confer regarding a demurrer and motion to strike portions of the Complaint. Thank you in advance for your professional courtesy and cooperation." (Id.) In response, Plaintiff stated: "I am not willing to discuss anything at this time." (Id.) Thus, the Court finds that Farahani has fulfilled her meet and confer obligation.

Request for Judicial Notice

"[T]he fact a court may take judicial notice of a recorded deed, or similar document, does not mean it may take judicial notice of factual matters stated therein. [Citation.]" (Herrera v. Deutsche Bank Nat. Trust Co. (2011) 196 Cal.App.4th 1366, 1375 [addressing recorded assignment of deed and substitution of trustee, and reversing summary judgment where bank defendant failed to show it was a beneficiary under deed of trust.]) A trial court errs in taking judicial notice of facts contained in recorded documents, where they are in dispute. (Id.)

Farahani

request for judicial notice of two grant deeds are GRANTED except as to hearsay matters and facts in dispute per Evidence Code Section 452, subdivisions (c) and (h). The request for judicial notice of the June 23, 2026 Minute Order regarding Plaintiff's Notice of Pendency of Action (Lis Pendens) is DENIED since judicial notice of the Court's own record is unnecessary and redundant. The Court can always review its own case file.

Demurrer

Farahani

demurs to the first and second causes of action on the grounds that the Complaint fails to state sufficient facts to support these causes of action against her. The Court briefly notes that Plaintiff raises arguments regarding equitable easement in the opposing papers, which is not a cause of action and/or remedy sought in the Complaint. Thus, the Court declines to consider such arguments in ruling on the merits of the demurrer.

First

Cause of Action for Quiet Title

"Quiet title

claims may establish title against adverse claims to real property or any

interest therein. [Citation]. A complaint alleging such a claim must be verified and include (1) a description of the property; (2) the basis for plaintiff's title; (3) the adverse claim or claims to title; (4) the date as of which the determination is sought; and (5) a prayer for determination of plaintiff's title against the adverse claims. [Citation]." (Mehta v. Wells Fargo Bank, N.A. (S.D. Cal. 2010) 737 F.Supp.2d 1185, 1206; see also Code Civ. Proc., § 761.020.)

"In an action to quiet title based on adverse possession the burden is upon the claimant to prove every necessary element: (1) Possession must be by actual possession under such circumstances as to constitute reasonable notice to the owner. (2) It must be hostile to the owner's title. (3) The holder must claim the property as his own under either color of title or claim of right. (4) Possession must be continuous and uninterrupted for five years. (5) The holder must pay all the taxes levied and assessed upon the property during the period. [Citations.]" (Preciado v. Wilde (2006) 139 Cal.App.4th 321, 325.)

The

Complaint alleges, inter alia, that Plaintiff is the owner and in possession of the real property commonly known as "22522 Burbank Blvd., Woodland Hills, California 91367, located in the City of Woodland Hills, County of Los Angeles, State of California, and more particularly described as Lot 5 of Tract No. 7568, Block A, in the City of Los Angeles, County of Los Angeles, State of California, as per Map recorded in Book 80, Pages 99-100 of Maps, in the Office of the County Recorder of said County (the "Subject Property")." (Compl., ¶¶1, 9.) Moazzami or Farahani is the owner and/or developer of the real property commonly known as "2518 Burbank Blvd., Woodland Hills, California 91367, and more particularly described as Lot 4 of Tract No. 7568, Block A, APN: 2040-014-003 (the "Adjacent Property")." (Id., ¶¶2, 12.) A dispute has arisen between Plaintiff and Defendants concerning the boundary line between the Subject property and the Adjacent Property, and concerning Plaintiff's right, title, and interest in and to a strip of land (approximately 18") along the eastern boundary of the Subject Property, including the area occupied by Plaintiff's fence line, landscaping, planted vegetation and trees, and mailbox (the "Disputed Area"). (Id., ¶13.)

From

approximately February 2010 to present, Plaintiff and his predecessors-in-interest have continuously, openly, and notoriously used the

Disputed Area for maintaining a fence line, planting and maintaining vegetation, trees, and landscaping, maintaining a mailbox, and general ingress and egress along the eastern boundary of the Subject Property. (Compl., ¶20.) Plaintiff's title to the Subject Property is based upon a Grant Deed recorded on June 8, 2023; Plaintiff's adverse possession of the Subject Property including the Disputed Area, for a period exceeding five (5) years; and payment of all taxes levied and assessed upon the Subject Property during said period. (Id., ¶29.)

Taking

the allegations as true, the Complaint fails to allege facts sufficient to support a cause of action for quiet title. California courts require a definite and specific legal description of the real property or interest for which a party seeks quiet title. (See *People v. Rio Nido Co.* (1938) 29 Cal.App.2d 486, 491 ["In order to give stability to the judgment it and the corresponding findings should describe the land with such definiteness as to enable the parties to know from such description the precise limits or the location of the boundary lines thereof."].) Here, the Complaint merely alleges that the Disputed Area is approximately 18 inches and occupied by Plaintiff's fence line, landscaping, planted vegetation and trees, and mailbox. Furthermore, the attached exhibits do not specify which is the Subject Property, Adjacent, and where the Disputed Area is located between the properties. The Complaint also fails to allege whether Plaintiff's claim to the property is under "color of title" or "claim of right." In California, "[c]olor of title means that which in appearance is title, but in fact is not a good title." (*Grossman v. Yip Wing* (1923) 62 Cal.App. 121, 128; see also Code Civ. Proc., § 322.) By contrast, a "claim of right" refers to when "it appears that there has been an actual continued occupation of land, under a claim of title, exclusive of any other right, but not founded upon a written instrument, judgment, or decree, the land so actually occupied, and no other, is deemed to have been held adversely." (See Code Civ. Proc., § 324.) Specifically, the Complaint merely alleges Plaintiff's ownership of the Subject Property including the Disputed Area under "title" from a grant deed recorded on June 8, 2023; adverse possession; and payment of all taxes levied and assessed upon the Subject Property during said period. There is no allegation that the grant deed was defective.

Likewise,

the Complaint is devoid of any allegations showing that Plaintiff adversely possessed the Disputed Area for the five-year statutory period. From 2023 to

present is only four (4) years. Also, the Complaint alleges that Moazzami or Farahani came into ownership of the Adjacent Property on June 17, 2023. (Compl., ¶¶12, 12.) The dispute regarding the boundary line arose shortly thereafter, thus Plaintiff has not plead facts of showing hostile possession. (Id., ¶¶13-16.) Finally, the Complaint does not allege payments of taxes on the Disputed Area for the entire time required.

Accordingly,
the demurrer to the first cause of action for quiet title is SUSTAINED with leave to amend.

Second
Cause of Action for Declaratory Relief – Prescriptive Easement

“To establish the elements of a prescriptive easement, the claimant must prove use of the property, for the statutory period of five years, which use has been (1) open and notorious; (2) continuous and uninterrupted; (3) hostile to the true owner; and (4) under claim of right.” (Hansen v. Sandridge Partners, L.P. (2018) 22 Cal.App.5th 1020, 1032.) The statutory period for calculation purposes does not begin to run until there is no longer a common-ownership, i.e., unity of ownership between the dominant and servient estates. (See generally, Husain v. California Pacific Bank (2021) 61 Cal.App.5th 717, 729.

The Complaint alleges, inter alia, that from approximately December 1996 to February 2012, Plaintiff’s predecessors-in-interest have continuously, openly, and notoriously used the Disputed Area for maintaining a fence line, planting and maintaining vegetation, trees, and landscaping, maintaining a mailbox, and general ingress and egress along the eastern boundary of the Subject Property. (Compl., ¶20.) Plaintiff leased the Subject Property from February 2010 until purchasing it in 2023. (Id., ¶¶11, 20.) Plaintiff’s title to the Subject Property is based upon a Grant Deed recorded on June 8, 2023; Plaintiff’s adverse possession of the Subject Property including the Disputed Area, for a period exceeding five (5) years; and payment of all taxes levied and assessed upon the Subject Property during said period. (Id., ¶29.) Moazzami or Farahani came into ownership of the Adjacent Property on June 17, 2023. (Id., ¶¶12, 12.) The dispute regarding the boundary line arose shortly thereafter. (Id., ¶¶13-16.)

Taking

the allegations as true, the Complaint is devoid of any allegations indicating that the dominant and servient estates' unity of ownership were severed during the time Plaintiff's predecessors-in-interest owned the Subject Property.

Similarly, Plaintiff allege ownership from June 2023 to present, which is only four (4) years.

Accordingly,

the demurrer to the second cause of action for declaratory relief – prescriptive easement is SUSTAINED with leave to amend.

Motion

to Strike

Farahani

moves for an order striking the prayer for treble damages and attorney's fees pursuant to Code of Civil Procedure Section 733 in the Complaint. The motion is made on the grounds that the Complaint fails to allege conduct by Farahani that constitutes trespass on the Subject Property.

Pursuant

to Code of Civil Procedure Section 733, "Any person who cuts down or carries off any wood or underwood, tree, or timber, or girdles or otherwise injures any tree or timber on the land of another person, or on the street or highway in front of any person's house, village, or city lot, or cultivated grounds; or on the commons or public grounds of any city or town, or on the street or highway in front thereof, without lawful authority, is liable to the owner of such land, or to such city or town, for treble the amount of damages which may be assessed therefor, in a civil action, in any Court having jurisdiction." (Code Civ. Proc., § 733.)

"[T]reble

damages may only be awarded when the wrongdoer intentionally acted wilfully or maliciously. The intent required is the intent to vex, harass, or annoy or injure the plaintiff. It is a question of fact for the trial court whether or not such intent exists." (Crofoot Lumber, Inc. v. Ford (1961) 191 Cal.App.2d 238, 246.)

The

Complaint alleges, inter alia, that Moazzami removed or damages Plaintiff's existing fence, front yard, landscaping, and vehicles; displaced boundary markers; and threatened to remove all Plaintiff's mailbox, driveway planters and tress, and side and rear fence line via text messages. (Compl., ¶¶13-16, 24, 42.) However, the Complaint does not allege Farahani engaged in such conduct. Thus, the Complaint fails to allege treble damages under Code of Civil Procedure Section 733 against Farahani.

With respect to attorney's fees, they are not available unless authorized by statute or an agreement between the parties. (Code Civ. Proc., § 1021.) Code of Civil Procedure Section 733 makes no mention of attorney's fees being recoverable. Further, the prayer for attorney's fees does not cite to any specific statute or contract to support the request for such relief. The only other statutory claim in this matter is the Nuisance claim under Civil Code Section 3479, which does not provide for recovering of attorney's fees either.

Accordingly, the motion to strike Prayer for Relief, paragraphs 9 and 13 is GRANTED with leave to amend.

IV.

CONCLUSION

Based on the foregoing, Defendant Siva Farahani's Demurrer to the Complaint is SUSTAINED with 20 days leave to amend as to the first and second causes of action.

Defendant Siva Farahani's Motion to Strike Prayer for Relief, paragraphs 9 and 13 is GRANTED with 20 days leave to amend.

Defendant Siva Farahani to give notice.

Dated: September
4, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court